

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***French v. Boyajian***
Superior Court Case No. 22CECG01923

Hearing Date: May 19, 2026 (Dept. 503)

Motion: By Plaintiff Michael French for an Order Compelling Form Interrogatories, Set One, and Plaintiff's Request for Production of Documents to Defendant, Set One; and Request for Sanctions

Tentative Ruling:

To grant plaintiff Michael French's motion to compel defendant William Scott Boyajian to provide verified responses to Form Interrogatories, Set One, and Plaintiff's Request for Production of Documents to Defendant, Set One. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) Defendant William Scott Boyajian is ordered to serve complete verified responses to the discovery set forth above, without objections, within 10 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of plaintiff Michael French and against defendant William Scott Boyajian. (Code Civ. Proc., §§ 2023.010, subd. (d), 2030.290, subd. (c), 2031.300, subd. (c).) Defendant William Scott Boyajian is ordered to pay \$645 in total sanctions to counsel for plaintiff Michael French within 30 days of the clerk's service of the minute order.

Explanation:

Where a party fails to serve a timely response to interrogatories or demand for inspection, copying, testing, or sampling, the propounding party may move for an order compelling response. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) A party that fails to serve a timely response to interrogatories or an inspection demand waives any objection to the request. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).) Answers to interrogatories that are not verified are tantamount to no response at all for the purpose of discovery. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.)

In the case at bench, on March 31, 2025, plaintiff Michael French ("Plaintiff") served Form Interrogatories, Set One, and Plaintiff's Request for Production of Documents to Defendant, Set One, on defendant William Scott Boyajian ("Defendant") by mail. Plaintiff was required to respond by May 5, 2025. Defendant failed to timely serve verified responses. Therefore, Plaintiff is entitled to an order compelling Defendant to respond to the discovery at issue. (Code Civ. Proc., §§ 2030.290, subd. (b), 2031.300, subd. (b).) All objections are waived. (*Id.*, §§ 2030.290, subd. (a), 2031.300, subd. (a).)

If the party asks for monetary sanctions against the party who failed to respond to interrogatories, the court shall impose a monetary sanction against the losing party on the motion to compel unless it finds that the one subject to the sanction acted with substantial justification or circumstances make the sanctions unjust. (Code Civ. Proc., § 2030.290, subd. (c).) Sanctions are similarly authorized against a party who failed to respond to a demand for inspection or production. (*Id.*, § 2031.300, subd. (c).) Sanctions must be for reasonable expenses in enforcing discovery, including attorney's fees. (*Id.*, § 2023.030, subd. (a).)

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Issued By: JS on 05/17/2026
(Judge's initials) (Date)